

Paternity pay and leave

1. Overview

When you take time off because your partner's having a baby, adopting a child or having a baby through a surrogacy arrangement you [might be eligible](https://web/20250115174155/https://www.gov.uk/paternity-pay-leave/eligibility) ([/web/20250115174155/https://www.gov.uk/paternity-pay-leave/eligibility](https://web/20250115174155/https://www.gov.uk/paternity-pay-leave/eligibility)) for:

- 1 or 2 weeks' paid Paternity Leave
- Paternity Pay
- [Shared Parental Leave and Pay](https://web/20250115174155/https://www.gov.uk/shared-parental-leave-and-pay/overview) ([/web/20250115174155/https://www.gov.uk/shared-parental-leave-and-pay/overview](https://web/20250115174155/https://www.gov.uk/shared-parental-leave-and-pay/overview))

This guide is also available [in Welsh \(Cymraeg\)](https://web/20250115174155/https://www.gov.uk/tal-absenoldeb-tadolaeth) ([/web/20250115174155/https://www.gov.uk/tal-absenoldeb-tadolaeth](https://web/20250115174155/https://www.gov.uk/tal-absenoldeb-tadolaeth)).

You may not get both leave and pay, and there are rules on [how to claim](https://web/20250115174155/https://www.gov.uk/paternity-pay-leave/how-to-claim) ([/web/20250115174155/https://www.gov.uk/paternity-pay-leave/how-to-claim](https://web/20250115174155/https://www.gov.uk/paternity-pay-leave/how-to-claim)) and [when your leave can start](https://web/20250115174155/https://www.gov.uk/paternity-pay-leave/leave) ([/web/20250115174155/https://www.gov.uk/paternity-pay-leave/leave](https://web/20250115174155/https://www.gov.uk/paternity-pay-leave/leave)).

Employment rights when on leave

Your [employment rights](https://web/20250115174155/https://www.gov.uk/employee-rights-when-on-leave) ([/web/20250115174155/https://www.gov.uk/employee-rights-when-on-leave](https://web/20250115174155/https://www.gov.uk/employee-rights-when-on-leave)) are protected while on paternity leave. This includes your right to:

- pay rises
- build up (accrue) holiday
- return to work

You can get time off to accompany your partner (or the surrogate mother) to 2 antenatal appointments.

If you're adopting a child, you can get time off to attend 2 adoption appointments after you've been matched with a child.

2. Leave

Paternity leave

The amount of leave you can take depends on when your baby is due.

If the baby is due before or on 6 April 2024, or before 6 April 2024 for adoptions

You can choose to take either 1 or 2 weeks' leave. You must take your leave in one go. You get the same amount of leave even if you have more than one child (for example, twins).

A week of leave is the same amount of days that you normally work in a week. For example, if you only work on Mondays and Tuesdays, then a week of leave is 2 days.

Your leave cannot start before the birth. It must end within 56 days of the birth (or due date, if the baby is early). The start and end date rules are different [if you adopt](https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption) (<https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption>).

You must give your employer 28 days' notice if you want to change your start date.

You do not have to give a precise date when you want to take leave. Instead you can give a general time, such as the day of the birth or one week after the birth.

If the baby is due after 6 April 2024, or on or after 6 April 2024 for adoptions

You can take either 1 or 2 weeks' leave. If you choose to take 2 weeks, you can take them together or separately. You get the same amount of leave even if you have more than one child (for example, twins).

A week of leave is the same amount of days that you normally work in a week. For example, if you only work on Mondays and Tuesdays, then a week of leave is 2 days.

Your leave cannot start before the birth. It must end within 52 weeks of the birth (or due date, if the baby is early). The start and end dates rules are different [if you adopt](https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption) (<https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption>).

You must give your employer 28 days' notice if you want to change your start date.

You do not have to give a precise date when you want to take leave. Instead you can give a general time, such as the day of the birth or one week after the birth.

There are different rules [if you live in Northern Ireland](https://web.archive.org/web/20250115174155/https://www.nidirect.gov.uk/articles/paternity-leave) (<https://web.archive.org/web/20250115174155/https://www.nidirect.gov.uk/articles/paternity-leave>).

Shared Parental Leave

You may also be eligible for [Shared Parental Leave](https://web.archive.org/web/20250115174155/https://www.gov.uk/shared-parental-leave-and-pay) ([/web/20250115174155/https://www.gov.uk/shared-parental-leave-and-pay](https://web.archive.org/web/20250115174155/https://www.gov.uk/shared-parental-leave-and-pay)) (SPL). You cannot take Paternity Leave after you take SPL.

Leave for antenatal appointments

You can take unpaid leave to accompany a pregnant woman to 2 antenatal appointments if you're:

- the baby's father
- the expectant mother's spouse or civil partner
- in a long-term relationship with the expectant mother
- the intended parent (if you're having a baby through a surrogacy arrangement)

You can take up to 6 and a half hours per appointment. Your employer can choose to give you longer.

You can apply for leave immediately if you're a permanent employee. You'll need to have been doing a job for 12 weeks before you qualify if you're an agency worker.

Leave for adoption appointments

You can take unpaid leave to attend 2 adoption appointments after you've been matched with a child.

You can take up to 6 and a half hours per appointment. Your employer can choose to give you longer.

You can apply for leave immediately if you're a permanent employee. You'll need to have been doing a job for 12 weeks before you qualify if you're an

agency worker.

3. Pay

The statutory weekly rate of Paternity Pay is £184.03, or 90% of your average weekly earnings (whichever is lower).

Any money you get is paid in the same way as your wages, for example monthly or weekly. Tax and National Insurance will be deducted.

Start and end dates

The money is usually paid while you're on leave. Your employer must confirm the start and end dates for your Paternity Pay when you claim it.

To change the start date you must give your employer 28 days' notice before the block of paid leave begins.

You could get more pay if your employer has a company paternity scheme - they cannot offer you less than the statutory amounts.

4. Eligibility

You must be taking time off to look after the child and be one of the following:

- the father
- the husband or partner of the mother (or adopter) - this includes same-sex partners
- the child's adopter
- the intended parent (if you're having a baby through a surrogacy arrangement)

There are extra conditions you need to meet to qualify for leave and pay.

You cannot get Paternity Pay and Leave if you've taken paid time off to attend adoption appointments.

Paternity Leave

You must:

- be [an employee](https://www.gov.uk/employment-status) ([/web/20250115174155/https://www.gov.uk/employment-status](https://www.gov.uk/employment-status))

- give the [correct notice \(/web/20250115174155/https://www.gov.uk/paternity-pay-leave/how-to-claim\)](/web/20250115174155/https://www.gov.uk/paternity-pay-leave/how-to-claim)
- have been [continuously employed by your employer \(/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is\)](/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is) for at least 26 weeks up to any day in the 'qualifying week'

The 'qualifying week' is the 15th week before the baby is due. This is different [if you adopt \(/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption\)](/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption).

Paternity Pay

You must:

- be employed by your employer up to the date of birth
- earn an average of at least £123 a week (before tax)
- give the [correct notice \(/web/20250115174155/https://www.gov.uk/paternity-pay-leave/how-to-claim\)](/web/20250115174155/https://www.gov.uk/paternity-pay-leave/how-to-claim)
- have been [continuously employed by your employer \(/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is\)](/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is) for at least 26 weeks up to the end of any day in the 'qualifying week'

The 'qualifying week' is the 15th week before the baby is due. This is different [if you adopt \(/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption\)](/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption).

If you lose your baby

You can still get Paternity Leave or Pay if your baby is:

- stillborn from 24 weeks of pregnancy
- born alive at any point during the pregnancy

You can take any leave you booked before losing the baby. If after losing the baby you have leave left to book, you can still book and take this. You must do this within 8 weeks of the death.

You may also be eligible for [Statutory Parental Bereavement Pay and Leave \(/web/20250115174155/https://www.gov.uk/parental-bereavement-pay-leave\)](/web/20250115174155/https://www.gov.uk/parental-bereavement-pay-leave).

If you're not eligible

Your employer must tell you within 28 days if you do not qualify and why using form SPP1.

5. How to claim

You claim Paternity Leave and Pay through your employer. You must give your employer at least 15 weeks' notice.

You can do this by filling in [the online form](https://web.archive.org/web/20250115174155/https://www.tax.service.gov.uk/apply-for-statutory-paternity-pay) (<https://web.archive.org/web/20250115174155/https://www.tax.service.gov.uk/apply-for-statutory-paternity-pay>) (previously called form SC3). Once you have completed the form, you will need to download or print it and send it to your employer.

Check if your employer has their own form. If they do, use that instead.

The rules and forms are different [if you adopt](https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption) ([/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption](https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/adoption)).

You'll need to include:

- the due date
- when you want your leave to start, for example the day of the birth or the week after the birth
- if you want 1 or 2 weeks' leave

You do not need to give proof of the pregnancy or birth.

Use the [paternity planner](https://web.archive.org/web/20250115174155/https://www.gov.uk/pay-leave-for-parents) ([/web/20250115174155/https://www.gov.uk/pay-leave-for-parents](https://web.archive.org/web/20250115174155/https://www.gov.uk/pay-leave-for-parents)) to find out when you need to claim Paternity Leave by.

6. Adoption and surrogacy

Eligibility

You must have been [continuously employed by your employer](https://web.archive.org/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is) ([/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is](https://web.archive.org/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is)) for at least 26 weeks up to the end of any day in the 'qualifying week'.

For adoptions in the UK, this is the week you're matched with the child.

For overseas adoptions, this is either:

- the week the child enters the UK
- the week you want your pay or leave to start

You must also meet the other [eligibility conditions](https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/eligibility) ([/web/20250115174155/https://www.gov.uk/paternity-pay-leave/eligibility](https://web.archive.org/web/20250115174155/https://www.gov.uk/paternity-pay-leave/eligibility)) for paternity leave or pay.

Start and end dates - Paternity Leave

Your period of Paternity Leave can start as early as:

- the date of placement
- the date the child arrives in the UK if you're adopting from overseas
- the date the child's born (or the day after if you're working that day) if you're a surrogate parent
- a date you choose which falls after the date of birth or placement

You must give your employer 28 days' notice if you want to change your start date.

For adoptions within the UK and from overseas

If the child is expected to be placed or to arrive in England, Scotland or Wales:

- before 6 April 2024, your leave must end within 56 days of the placement or arrival date
- on or after 6 April 2024, your leave must end within 52 weeks of the placement or arrival date

There are different rules for adoptions [if you live in Northern Ireland](https://web.archive.org/web/20250115174155/https://www.nidirect.gov.uk/articles/paternity-leave) (<https://web.archive.org/web/20250115174155/https://www.nidirect.gov.uk/articles/paternity-leave>).

For surrogate parents

If the child is expected to be born:

- on or before 6 April 2024, your leave must end within 56 days of the child's birth
- after 6 April 2024, your leave must end within 52 weeks of the child's birth

How to claim - Paternity Leave or Pay

You can use [the online form](https://web.archive.org/web/20250115174155/https://www.tax.service.gov.uk/apply-for-statutory-paternity-pay) (<https://web.archive.org/web/20250115174155/https://www.tax.service.gov.uk/apply-for-statutory-paternity-pay>) (or your employer's own version) for:

- adoption - within 7 days of your co-adopter or partner being matched with a child

- surrogacy arrangements - 28 days, or as soon as you're reasonably able, before you want your pay to start

You'll need to download or print the form after completing it and give your employer a copy.

For overseas adoptions the notice period is different. The process is explained in [the online form](https://web.archive.org/web/20250115174155/https://www.tax.service.gov.uk/apply-for-statutory-paternity-pay) (<https://web.archive.org/web/20250115174155/https://www.tax.service.gov.uk/apply-for-statutory-paternity-pay>).

The online form replaces forms SC4 and SC5.

Surrogacy arrangements

To be eligible for Paternity Pay and Leave if you use a surrogate to have a baby, you must:

- be in a couple
- be responsible for the child (with your partner)
- have [worked for your employer continuously](https://web.archive.org/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is) ([/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is](https://web.archive.org/web/20250115174155/https://www.gov.uk/continuous-employment-what-it-is)) for at least 26 weeks by the end of the 'qualifying week' (the 15th week before the baby is due)

You claim Paternity Leave and Pay through your employer. You must give your employer at least 15 weeks' notice to claim Paternity Pay. To get Statutory Paternity Pay, you must give this in writing.

You must also provide a written statement to confirm that:

- you intend to apply for a [parental order](https://web.archive.org/web/20250115174155/https://www.gov.uk/become-a-childs-legal-parent) ([/web/20250115174155/https://www.gov.uk/become-a-childs-legal-parent](https://web.archive.org/web/20250115174155/https://www.gov.uk/become-a-childs-legal-parent)) in the 6 months after the child's birth
- you expect the court to give you that order

There are different rules for surrogacy arrangements [if you live in Northern Ireland](https://web.archive.org/web/20250115174155/https://www.nidirect.gov.uk/articles/paternity-leave) (<https://web.archive.org/web/20250115174155/https://www.nidirect.gov.uk/articles/paternity-leave>).



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